

# HOUSE . . . . . No. 4328

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, July 30, 2025.

The committee on The Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1673) of Paul J. Donato and others relative to the operation of the registries of probate, reports recommending that the accompanying bill (House, No. 4328) ought to pass.

For the committee,

MICHAEL S. DAY.

# HOUSE . . . . . No. 4328

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act relative to the efficient management and operation of the registries of probate.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 2 of chapter 217 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by inserting, in line 14, after the word “including” the  
3   following words:- the selection, appointment, and management of.

4           SECTION 2. Said chapter 217 of the General Laws is hereby further amended by  
5   striking out section 23, as so appearing, and inserting in place thereof the following section:-

6           Section 23. The register of the respective courts of the probate and family court  
7   department may, with the approval of the chief justice of the probate and family court, appoint  
8   for a term of 3 years and may, with the approval of the chief justice, remove a first assistant  
9   register of probate. Before entering upon the performance of his duties, a first assistant register  
10   shall take the oath prescribed by the constitution. The appointments shall be as follows:

11           Barnstable, 1 first assistant register

12           Berkshire, 1 first assistant register

- 13 Bristol, 1 first assistant register
- 14 Essex, 1 first assistant register
- 15 Franklin, 1 first assistant register
- 16 Hampden, 1 first assistant register
- 17 Hampshire, 1 first assistant register
- 18 Middlesex, 1 first assistant register
- 19 Norfolk, 1 first assistant register
- 20 Plymouth, 1 first assistant register
- 21 Suffolk, 1 first assistant register
- 22 Worcester, 1 first assistant register.

23 SECTION 3. Said chapter 217 is hereby further amended by striking out section 23A, as  
24 so appearing, and inserting in place thereof the following section:-

25 Section 23A. In addition to the first assistant registers of probate provided for in section  
26 23, the registers of the respective courts of the probate and family court department for the  
27 following counties may, with the approval of the chief justice of the probate and family court,  
28 appoint for terms of 3 years and may, with the approval of the chief justice, remove assistant  
29 registers with the same powers and duties. The appointments shall be as follows:

- 30 Barnstable, 2 assistant registers
- 31 Berkshire, 1 assistant register

32 Bristol, 2 assistant registers

33 Essex, 3 assistant registers

34 Franklin, 1 assistant register

35 Hampden, 2 assistant registers

36 Hampshire, 1 assistant register

37 Middlesex, 4 assistant registers

38 Norfolk, 2 assistant registers

39 Plymouth, 2 assistant registers

40 Suffolk, 2 assistant registers

41 Worcester, 2 assistant registers.

42 SECTION 4. Said chapter 217 is hereby further amended by striking out section 23B, as

43 so appearing, and inserting in place thereof the following section:-

44 Section 23B. The positions of administrative deputy assistant registers are hereby

45 eliminated. Notwithstanding the elimination of these positions or any other general or special law

46 to the contrary, a person employed as an administrative deputy assistant register of probate

47 pursuant to this section as of the effective date of this act shall continue to be employed as an

48 administrative deputy assistant register of probate and shall continue to serve in that capacity at

49 the pleasure of the register of probate for that county. The position of administrative deputy

50 assistant shall continue to meet the definitions of both confidential and managerial employees as

those terms appear in chapter 150E and any individuals continuing to be employed in that capacity shall perform no official judicial duties.

SECTION 5. Section 23C of said chapter 217, as so appearing, is hereby amended by striking out, in line 15, the number “1” and inserting in place thereof the following number:- 2.

SECTION 6. Said chapter 217 is hereby further amended by striking out section 23D, as so appearing, and inserting in place thereof the following section:-

Section 23D. In addition to the judicial case managers of the probate and family court provided for in section 23C, the first justices of the respective courts of the probate and family court department for the following counties may, with the approval of the chief justice of the probate and family court, appoint and may, with the approval of the chief justice, remove assistant judicial case managers with the same powers and duties. The appointments shall be as follows:

Barnstable, 2 assistant judicial case managers

Berkshire, 1 assistant judicial case manager

Bristol, 5 assistant judicial case managers

Essex, 6 assistant judicial case managers

Franklin, 1 assistant judicial case manager

Hampden, 5 assistant judicial case managers

Hampshire, 1 assistant judicial case manager

70 Middlesex, 8 assistant judicial case managers

71 Norfolk, 5 assistant judicial case managers

72 Plymouth, 5 assistant judicial case managers

73 Suffolk, 5 assistant judicial case managers

74 Worcester, 6 assistant judicial case managers.

75 SECTION 7. Section 27A of said chapter 217 of the General Laws, as appearing in the  
76 2022 Official Edition, is hereby amended by striking out, in line 4, the words “as such assistant”.

77 SECTION 8. Said chapter 217 of the General Laws is hereby further amended by striking  
78 out section 28, as so appearing, and inserting in place thereof the following section:-

79 Section 28. The first justice of the Suffolk county court may, subject to the approval of  
80 the chief justice of the probate and family court, appoint a clerk who may administer the oaths  
81 required in probate proceedings that are not prescribed by law to be administered by the judge or  
82 register and shall perform such clerical and other duties as may be required by the first justice.  
83 The clerk may be removed by the first justice, with the approval of the chief justice. The Suffolk  
84 county register of probate may, with the approval of the chief justice, designate 6 employees as  
85 deputy assistant registers with the same powers as assistant registers and may revoke such  
86 designation with the approval of the chief justice. Four of the deputy assistant registers shall  
87 receive as additional compensation an amount equal to 10 per cent of the annual salary of the  
88 Suffolk county register of probate. Two of the deputy assistant registers shall receive as  
89 additional compensation an amount equal to 5 per cent of the annual salary of the Suffolk county  
90 register of probate. Notwithstanding the above, any person designated as a deputy assistant

91 register of probate pursuant to this section as of the effective date of this act shall continue to  
92 serve in that capacity, as previously provided by this section prior to its amendment and shall  
93 continue to receive 15 per cent of the annual salary of the Suffolk county register of probate until  
94 they are no longer so designated, as previously provided by this section prior to its amendment.  
95 The positions of associate deputy registers, previously provided for, are hereby eliminated.  
96 Notwithstanding the elimination of these positions or any other general or special law to the  
97 contrary, a person designated as an associate deputy register of probate pursuant to this section as  
98 of the effective date of this act shall continue to serve in that capacity and receive the additional  
99 compensation of 7.5 per cent of the annual salary of the Suffolk county register of probate, as  
100 previously provided by this section prior to its amendment, until they are no longer so  
101 designated.

102 SECTION 9. Said chapter 217 of the General Laws is hereby further amended by striking  
103 out section 29, as so appearing, and inserting in place thereof the following section:-

104 Section 29. The first justice of the Middlesex county court may, with the approval of the  
105 chief justice of the probate and family court, appoint a clerk who may administer the oaths  
106 required in probate proceedings that are not prescribed by law to be administered by the judge or  
107 register and shall perform such clerical and other duties as may be required by the first justice.  
108 The clerk may be removed by the first justice with the approval of the chief justice. The  
109 Middlesex county register of probate may, with the approval of the chief justice, designate 9  
110 employees as deputy assistant registers with the same powers as assistant registers and with the  
111 approval of the chief justice remove a deputy assistant register. Six of the deputy assistant  
112 registers shall receive additional compensation in an amount equal to 10 per cent of the annual  
113 salary of the Middlesex county register of probate. Three of the deputy assistant registers shall

114 receive as additional compensation an amount equal to 5 per cent of the annual salary of the  
115 Middlesex county register of probate. Notwithstanding the above, any person designated as a  
116 deputy assistant register of probate pursuant to this section as of the effective date of this act  
117 shall continue to be serve in that capacity, as previously provided by this section prior to its  
118 amendment and shall continue to receive 15 per cent of the annual salary of the Middlesex  
119 county register of probate until they are no longer so designated, as previously provided by this  
120 section prior to its amendment.

121 SECTION 10. Said chapter 217 of the General Laws is hereby further amended by  
122 striking out section 29A, as so appearing, and inserting in place thereof the following section:-

123 Section 29A. The first justice of the Dukes county court may, with the approval of the  
124 chief justice of the probate and family court, appoint a clerk who may administer the oaths  
125 required in probate proceedings that are not prescribed by law to be administered by the judge or  
126 register and shall perform such clerical and other duties as may be required by the first justice,  
127 with the approval of the chief justice. The clerk may be removed by the first justice with the  
128 approval of the chief justice. The Dukes county register of probate may, with the approval of the  
129 chief justice, designate 2 employees as deputy assistant registers with the same powers as  
130 assistant registers and with the approval of the chief justice remove a deputy assistant register.  
131 One deputy assistant register shall receive additional compensation in an amount equal to 10 per  
132 cent of the annual salary of the Dukes county register of probate. One deputy assistant register  
133 shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the  
134 Dukes county register of probate. Notwithstanding the above, any person designated as a deputy  
135 assistant register of probate pursuant to this section as of the effective date of this act shall  
136 continue to be serve in that capacity, as previously provided by this section prior to its



amendment and shall continue to receive 15 per cent of the annual salary of the Dukes county register of probate until they are no longer so designated, as previously provided by this section prior to its amendment.

SECTION 11. Said chapter 217 of the General Laws is hereby further amended by striking out section 29B, as so appearing, and inserting in place thereof the following section:-

Section 29B. The first justice for the Nantucket county court may, with the approval of the chief justice of the probate and family court, appoint a clerk who may administer the oaths required in probate proceedings that are not prescribed by law to be administered by the judge or register, and shall perform such clerical and other duties as may be required by the first justice, with the approval of the chief justice. The clerk may be removed by the first justice with the approval of the chief justice. The Nantucket county register of probate may, with the approval of the chief justice, designate 2 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. One deputy assistant register shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Nantucket county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Nantucket county register of probate.

SECTION 12. Said chapter 217 is hereby further amended by striking out section 29C, as so appearing, and inserting in place thereof the following section:-

Section 29C. The register of the Barnstable probate court may, with the approval of the chief justice of the probate and family court, designate 5 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a

159 deputy assistant register. Three deputy assistant registers shall receive additional compensation  
160 in an amount equal to 10 per cent of the annual salary of the Barnstable county register of  
161 probate. Two deputy assistant registers shall receive additional compensation in an amount  
162 equal to 5 per cent of the annual salary of the Barnstable county register of probate.

163 SECTION 13. Said chapter 217 of the General Laws is hereby further amended by  
164 striking out section 29D, as so appearing, and inserting in place thereof the following section:-

165 Section 29D. The register of the Berkshire probate court may, with the approval of the  
166 chief justice of the probate and family court, designate 3 employees as deputy assistant registers  
167 with the same powers as assistant register and with the approval of the chief justice remove a  
168 deputy assistant register. Two deputy assistant registers shall receive additional compensation in  
169 an amount equal to 10 per cent of the annual salary of the Berkshire county register of probate.  
170 One deputy assistant register shall receive additional compensation in an amount equal to 5 per  
171 cent of the annual salary of the Berkshire county register of probate.

172 SECTION 14. Said chapter 217 is hereby further amended by striking out section 29E, as  
173 so appearing, and inserting in place thereof the following section:-

174 Section 29E. The register of the Hampden probate court may, with the approval of the  
175 chief justice of the probate and family court, designate 6 employees as deputy assistant registers  
176 with the same powers as assistant registers and with the approval of the chief justice remove a  
177 deputy assistant register. Four deputy assistant registers shall receive additional compensation in  
178 an amount equal to 10 per cent of the annual salary of the Hampden county register of probate.  
179 Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per  
180 cent of the annual salary of the Hampden county register of probate. Notwithstanding the above,

any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity and shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Hampden county register of probate.

SECTION 15. Said chapter 217 of the General Laws is hereby further amended by striking out section 29F, as so appearing, and inserting in place thereof the following section:-

Section 29F. The register of the Worcester probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Worcester county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Worcester county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Worcester county register of probate.

SECTION 16. Said chapter 217 of the General Laws is hereby further amended by striking out section 29G, as so appearing, and inserting in place thereof the following section:-

Section 29G. The register of the Bristol probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice

remove a deputy assistant register. Four deputy assistant registers shall receive in addition to their salaries as employees, additional compensation in an amount equal to 10 per cent of the annual salary of the Bristol county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Bristol county register of probate.

SECTION 17. Said chapter 217 of the General Laws is hereby further amended by striking out section 29H, as so appearing, and inserting in place thereof the following section:-

Section 29H. The register of the Hampshire probate and family court may, with the approval of the chief justice of the probate and family court, designate 3 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Two deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Hampshire county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Hampshire county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Hampshire county register of probate.

SECTION 18. Said chapter 217 of the General Laws is hereby further amended by striking out section 29I, as so appearing, and inserting in place thereof the following section:-

Section 29I. The register of the Plymouth probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy

225 assistant registers with the same powers as assistant registers and with the approval of the chief  
226 justice remove a deputy assistant register. Four deputy assistant registers shall receive in addition  
227 to their salaries as employees, additional compensation in an amount equal to 10 per cent of the  
228 annual salary of the Plymouth county register of probate. Two deputy assistant registers shall  
229 receive additional compensation in an amount equal to 5 per cent of the annual salary of the  
230 Plymouth county register of probate.

231 SECTION 19. Said chapter 217 of the General Laws is hereby further amended by  
232 striking out section 29J, as so appearing, and inserting in place thereof the following section:-

233 Section 29J. The register of the Essex probate and family court may, with the approval of  
234 the chief justice of the probate and family court, designate 6 employees as deputy assistant  
235 registers with the same powers as an assistant register and with the approval of the chief justice  
236 remove a deputy assistant register. Four deputy assistant registers shall receive additional  
237 compensation in an amount equal to 10 per cent of the annual salary of the Essex county register  
238 of probate. Two deputy assistant register shall receive additional compensation in an amount  
239 equal to 5 per cent of the annual salary of the Essex county register of probate.

240 SECTION 20. Said chapter 217 of the General Laws is hereby further amended by  
241 striking out section 29K, as so appearing, and inserting in place thereof the following section:-

242 Section 29K. The register of the Franklin probate and family court may, with the  
243 approval of the chief justice of the probate and family court, designate 3 employees as deputy  
244 assistant registers with the same powers as an assistant register and with the approval of the chief  
245 justice remove a deputy assistant register. Two deputy assistant registers shall receive in addition  
246 to his salary as an employee, additional compensation in an amount equal to 10 per cent of the

annual salary of the Franklin county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Franklin county register of probate.

SECTION 21. Said chapter 217 of the General Laws is hereby further amended by striking out section 29L, as so appearing, and inserting in place thereof the following section:-

Section 29L. The register of the Norfolk probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as an assistant register and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Norfolk county register of probate. Two deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Norfolk county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Norfolk county register of probate until they are no longer so designated, as previously provided by this section prior to its amendment.